

# **Aboriginal and Treaty Litigation**

## **Project Descriptions**

## **Introduction**

My original intention for the project was to reflect on the doctrine of discovery and to rewrite one of the decisions. However, while working through that process two other projects were developed.

Below is a short description of the three projects. The first one is the Word Spiral as a representation of how I see the aboriginal law being developed in Canada. The second is a photography hummingbird project based on our classroom discussions. And last but not least, I have chosen to rewrite one of the decisions related to the Site C Dam: the Prophet River First Nations BCCA decision.<sup>1</sup>

## **Part I: Reset**

In electronics and technology, a reset button plays an important function. The usual effect of it is that you often lose progress and have to restart from the beginning. I have often wondered why not just do that when it comes to aboriginal law? Why not just hit a hard reset. It is a difficult thing to do when you have a spiraling amount of common law jurisprudence that is not easy to untangle.

I created a word spiral out the aboriginal and treaty litigation cases discussed in our seminar and in the first year of Law School. As a person with a civil law background I often look at the way common law is built through case law and as it spirals through the earlier decisions into the latest legal precedent.

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<sup>1</sup> *Prophet River First Nation v. British Columbia (Minister of Environment)*, 2017 BCCA 58

it was necessary, to establish a principle, discovery, diminished, necessarily a mere burden, personal and usufructuary right, dependent upon the good absolute, impaired, the rights were of the sovereign, infringing, on the circumstances, ill suited and substantial, special not relative depending, action, never on the discharging the duty, perfect for Legislative amounts to seeking a "veto".

The words and phrases are from the following decisions:

- *Johnson and Graham's Lessee v William M'Intosh*, 21 U.S. 543, 5 L. Ed. 681, 1823 .S. 8 Wheat. 543;
- *St Catherine's Mill, St Catharines Milling and Lumber Company v The Queen*, [1888] UKPC 70;
- *R v Sparrow*, (1990), 1 SCR 1075;
- *R. v. Calder*, [1996] 1 SCR 660;
- *Ahousaht v. Canada (Minister of Fisheries and Oceans)*, 2008 FCA 212
- *Haida Nation v. British Columbia (Minister of Forests)* 2018:
- *Raincoast Conservation Foundation et al. v. Attorney General of Canada et al.*, 2019 FCA 224. Part II:

## **Part II: Communicate**

The hummingbird piercing the crown was a doodle I made during my temporary articles at the Indigenous Community Legal Clinic. A hummingbird is the clinic's logo and it symbolizes advocacy and communication. The first time I saw a hummingbird was a few days after I arrived in Canada. I thought initially that I was being attacked by a giant bee. Soon I became quite obsessed with them and would try to spend much of my free time stalking hummingbirds in Stanley Park.



There have been several discussions in our seminar about the task we have not gotten to: building a mechanisms where the two legal orders (Indigenous and Common Law) could communicate with each other.<sup>2</sup> We went through several cases where the courts had the opportunity to learn but in the end they were unable to listen. For example, the trial judgement by McEachern J. in *Delgamuukw*.<sup>3</sup> Throughout all those discussions I had an image of my hummingbird doodle with the hummingbird trying to communicate with the Crown. Inspired by

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<sup>2</sup> Classroom talk and discussion with Louise Mandell, 5 February 2020.

<sup>3</sup> *Delgamuukw v British Columbia*, [1991] BCJ No 525.

love for hummingbirds and classroom discussion I decided to create a series of three photographs that represent a hummingbird attempting to communicate with the Crown. All of the photographs were taken by me during my bird walks in Stanley Park. Below is a smaller preview of the three photographs. Originals will be attached as separate files.



### **Part III: Rewrite**

Opportunities to take a different turn have been several. In *Mikisew Cree*, the Supreme Court of Canada had an opportunity to address whether the federal government was required to consult prior to passing environmental legislation that could have affects on the exercise of treaty and/or Aboriginal rights.<sup>4</sup> The decision that I decided to rewrite, or rather edit, for the third part of my Project is a BCCA decision from 2017: *Prophet River First Nation*.<sup>5</sup>

I was quite surprised about the way in which the Environmental Assessment process has turned into a checklist. If the right or asserted right is being infringed, then there needs to be a proper justification and not just a referral to a potentially decade long court process. And even if those same rights were determined in such a process - the damage has already been done.

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<sup>4</sup> *Mikisew Cree First Nation v. Canada (Governor General in Council)*, 2018 SCC 40.

<sup>5</sup> *Prophet River First Nation v. British Columbia (Minister of the Environment)*, 2017 BCCA 58

While I have made attempts to follow the precedents and statute in this area, I had to step out in few instances. In that respect my rewritten decision is more like a mediator decision rather than one following the rigid court guidelines.

The edited decision is submitted as a separate file (Word and PDF format) with tracked changes.